

HOUSE No. 4964

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of South Hadley to grant additional licenses for the sale of all alcoholic beverages.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>12/12/2025</i>

HOUSE No. 4964

By Representative Gómez of Easthampton, a petition (accompanied by bill, House, No. 4964) of Homar Gómez (by vote of the town) that the town of South Hadley be authorized to grant additional licenses for the sale of all alcoholic beverages in said town. Consumer Protection and Professional Licensure. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of South Hadley to grant additional licenses for the sale of all alcoholic beverages.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding sections 11 and 17 of chapter 138 of the General Laws
2 or any general or special law to the contrary, the licensing authority in the town of South Hadley
3 may grant: (i) 4 additional licenses for the sale of all alcoholic beverages to be drunk on the
4 premises pursuant to section 12 of said chapter 138; and (ii) 2 additional licenses for the sale of
5 all alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter
6 138.

7 (b) A license granted pursuant to clause (i) of subsection (a) shall only be exercised in the
8 dining room of a common victualler licensed to conduct a restaurant and other such public rooms
9 or areas as may be deemed reasonable and appropriate by the licensing authority as certified in
10 writing.

11 (c) The licensing authority shall not approve the transfer of a license granted pursuant to
12 this section to any other location, but it may grant the license to a new applicant at the same
13 location if the applicant files with the licensing authority a letter from the department of revenue
14 and a letter from the department of unemployment assistance indicating that the license is in
15 good standing with those departments and that all applicable taxes, fees and contributions have
16 been paid.

17 (d) If a licensee terminates or fails to renew a license granted under this section or any
18 such license is cancelled, revoked or no longer in use, it shall be returned physically, with all
19 legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the
20 licensing authority may, within 3 years after such return, then grant the license to a new applicant
21 at the same location under the same conditions as specified in this section, otherwise such license
22 shall dissolve.

23 (e) A license granted under this section shall be issued within 1 year after the effective
24 date of this act; provided, however, that a license originally granted within that time period may
25 be granted to a new applicant under subsections (c) and (d) thereafter.

26 SECTION 2. Upon issuance of the license authorized in clause (ii) of subsection (a) of
27 section 1, the licensee shall return physically, with all of the legal rights, privileges and
28 restrictions pertaining thereto, to the licensing authority its license for the sale of wine and malt
29 beverages not to be drunk on the premises under section 15 of chapter 138 of the General Laws.

30 SECTION 3. This act shall take effect upon its passage.